BHEKANI MLILO

Versus

THE STATE

HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 9 FEBRUARY 2026

Bail pending trial

T. Tavengwa, for the applicant
Ms T. Mtukwa, for the respondent

KABASA J: On 6 April 2026 I heard this bail application and dismissed it in an *ex tempore* judgment. I have now been asked for written reasons. These are they:

The applicant was arrested in Botswana on 15 July 2025 and successfully extradited to Zimbabwe in November 2025. He is facing allegations of contravening s126 of the Criminal Law (Codification and Reform) Act [Chapter 9:23]. It is alleged on 3 October 2024 the applicant in the company of several accomplices, 5 of whom were named as Elijah and Abraham Vumbunu, Simon Xola Ngcobo, Menzeli Mpofu and Khalid Ntimen drove from South Africa in a white Ford Ranger with South African Registration number KL8VTGP which they replaced with a Zimbabwean number plate AGP 2333 before proceeding to ECOBANK Parkade where they blocked a Safeguard Private Security Cash-In-Transit vehicle, held the security guards hostage and by use of firearms took from them 2 metal cash boxes which had a total of US$4 448 500, 3 firearms which they loaded into the Ford Ranger and sped off. The applicant was later arrested in Botswana and extradited to Zimbabwe in November 2025. He now seeks to be admitted to bail pending trial.

In a bail application pending trial the court weighs 2 competing interests. These are:

1.The liberty of individual

2. The proper administration of justice

In weighing these the Court is aware of the fact that the presumption of innocence operates in favour of an applicant seeking release on bail pending trial. The Constitution, s50 (1) (d) thereof has made bail a right to be interfered with only where there are compelling

reasons. Where the interests of justice are not likely to be interfered with courts lean towards grant of bail. (S *v Biti* 2002(1) ZLR 115(H))

In casu the offence was committed/occurred in October 2024. The applicant was only arrested in November 2025 after extradition from Botswana. The investigation officer deposed to an affidavit in which he stated that 2 of the accomplices were arrested in South Africa, Elijah and Abraham Vumbunu, and were awaiting extradition when the applicant, who was also in South Africa, fled to Botswana. He was arrested by Botswana officials at Tlokwana Border and subsequently extradited to Zimbabwe.

The state contends that there is a strong prima facie case against the applicant. The get away car was recovered, there are witnesses who are willing to testify against the applicant, a witness who was privy to the planning meeting held in South Africa where the robbery was mooted is also available to testify on the applicant's participation in the robbery. The police encountered challenges in arresting the applicant and it took a year before he was finally arrested and extradited. He is therefore a flight risk whose release on bail is also likely to erode the public's confidence in the justice delivery system given the nature of the case which attracted a lot of interest and publicity. The charges are of a serios nature and with conviction, the likely penalty will be heavy thereby increasing the inducement to evade justice, prejudicing the proper administration of justice.

The applicant however argued that he is not a flight risk. He was in Mozambique at the time the offence was committed. He is a family man of fixed abode and is prepared to surrender his passport to allay the fear of abscondment. He is not aware of the witnesses who are lined up to testify and does not know the accomplices for him to be able to interfere with any one of them.

The court has to resolve this one issue, which is whether the applicant will stand trial if admitted to bail? Is it in the interests of the proper administration of justice to admit such an applicant to bail? Bail is not to be used as a form of anticipatory punishment and therefore ought not to be denied merely on the basis of the seriousness of the offence. (S *v Hussey* 1991(2) ZLR 187 (S)

The court was referred to several cases, which all speak to what the court should consider in applications of this nature. (S *v Mlotshwa & Anor* HB 206-22, *S v Acheson* 1991 (2) SA 805, *Aitken & Anor v Attorney-General* 1992 (1) ZLR 249 (S) The seriousness of the offence, the

likely penalty and the incentive to abscond as well as the applicant's ability to travel with ease across borders and the strength of the state case are factors which the court ought to consider carefully. (S *v Ndhlovu* 2001 (2) ZLR 261 (H), S *v Jongwe* 2002 (2) ZLR 209(S))

The applicant is well travelled and the lack of a passport with our porous borders cannot stop one from travelling, especially when they are already well travelled and easily access cross border travel. It took a whole year for the police to eventually have him arrested and not in Zimbabwe but in Botswana, under the circumstances already alluded to.

Is admitting such an applicant to bail not tantamount to saying 'now go and ensure you make it impossible for the police to track you'. Would it not be irresponsible of the court to grant bail under these circumstances? I would say the answers to both rhetorical questions are in the affirmative.

The police already had problems arresting the applicant and only managed to do so through the extradition process. If that does not speak to him being a flight risk then I do not know what will. Granted the *alibi* defence is yet to be investigated but it is not speculative that people get passports *stamped* using cross border transporters such that the mere stamp is no proof that such person crossed the border. The wheels of justice must be allowed to turn without impediment and where there is a danger that one may not attend trial, as has been demonstrated *in casu,* bail ought to be refused. The interests and proper administration of justice do not support the admission of such an applicant to bail.

It is for the foregoing reasons that the application for bail pending trial was dismissed.

Mvundla Tavengwa Solicitors, applicant's legal practitioners
National Prosecuting Authority, respondent's legal practitioners